

CALVIN N. SOUTHER, JR.

Attorney at Law

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October 24, 2005

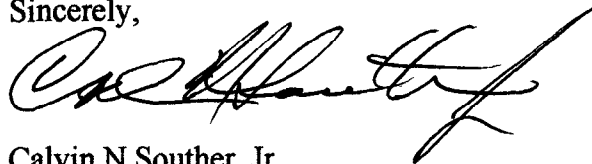
The Secretary
Federal Maritime Commission
Washington, D.C. 20573-0001

RE: *Mendoza v. Giorgio Gori*; Case No. 05-04: Motion to Dismiss

Please find enclosed Complainants motion to dismiss along with fifteen copies thereof. This matter is assigned to and presently is in front of ALJ Kenneth A. Krantz and this motion is directed to his attention.

Your assistance in this matter is appreciated.

Sincerely,



Calvin N Souther, Jr.

cc: Client
David P. Street, Esq.
Attorney for Respondent

cc: OS/GC
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FEDERAL MARITIME COMMISSION

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

October 24, 2005

DOCKET NO. 05-04

**MARCO MENDOZA AND CYNTHIA MENDOZA
DBA C&M PRECISION INSTRUMENT**

V.

GIORGIO GORI USA, INC., AND PHILIP ZELINKA

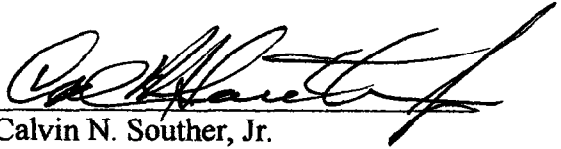
MOTION TO DISMISS

Complainants move the Commission for an order dismissing their complaint for the reasons set forth below. In his answer, Respondent Giorgio Gori, USA, Inc., requested the Commission to dismiss this action on the grounds that the Complaint failed

to state a cause of action. Presumably, and inherent in Respondents' request and assertion are their foundation on the Shipping Act of 1984, that being the only basis for this Commission's jurisdiction in the first place. Accordingly, Respondents have expressed their consent in advance and cannot now be heard to object to Claimants' motion.

Claimants base this motion on their belief that this action more properly should be maintained in the Circuit Court of the State of Oregon for the County of Multnomah, under the common law and statutes of that state, conceding that the Shipping Act of 1984 might be found to not provide the relief sought, nor provide adequate sanctions for the Respondents' conduct.

DATED: October 24, 2005


Calvin N. Souther, Jr.
Attorney for Claimants

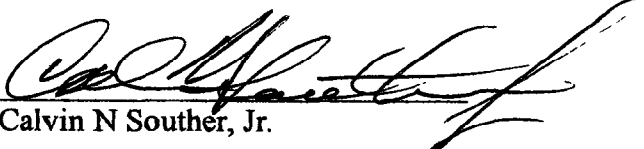
Calvin N Souther, Jr.
Attorney at Law
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Portland, Oregon 97224
503-624-9894 Phone
503-624-7174 Fax

CERTIFICATE OF SERVICE

I hereby certify that I served a true and correct copy of the forgoing motion on counsel for Respondent Giorgio Gori USA, Inc. at the address set forth below by first class mail, postage prepaid on October 24, 2005:

David P. Street, Esq.
Galland, Kharasch, Greenburg,
Fellman & Swirsky, P.C.
Canal Square 1054 Thirty-First Street, N.W.
Washington, D.C. 20007-4492

Dated: October 24, 2005


Calvin N Souther, Jr.